

UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT

AMERICAN SECURITIES ASSOCIATION and
CITADEL SECURITIES LLC,

Petitioners,

v.

UNITED STATES SECURITIES
AND EXCHANGE COMMISSION,

Respondent.

No. 23-13396

**CERTIFIED LIST DESCRIBING
THE RECORD IN PROCEEDINGS
BEFORE THE SECURITIES AND EXCHANGE COMMISSION**

Pursuant to Section 25(a)(2) of the Securities Exchange Act of 1934, 15 U.S.C. 78y(a)(2), and Federal Rule of Appellate Procedure 17, the Securities and Exchange Commission certifies that the items listed below constitute the record upon which the order under review in this Court was entered, with the exception of materials that are publicly available such as statutes, rules, judicial decisions, Commission orders and releases, books, treatises, and other similar materials.¹

¹ The order under review took into account certain comments received in connection with prior Commission filings: Securities Exchange Act Release No. 96394 (Nov. 28, 2022), published at 87 Fed. Reg. 74,183 (Dec. 2, 2022); Securities Exchange Act Release No. 94984 (May 25, 2022), published at 87 Fed. Reg. 33,226 (June 1, 2022). Those comments are either cited in the order or incorporated by reference in comments listed below, and are publicly available at <https://www.sec.gov/comments/4-698/4-698-a.htm>.

<u>No.</u>	<u>Description</u>
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| 1. | Notice of Filing of Amendment to the National Market System Plan Governing the Consolidated Audit Trail, Securities Exchange Act Release No. 97151 (Mar. 15, 2023), published at 88 Fed. Reg. 17,086 (Mar. 21, 2023). |
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Comment Letters (all letters available at <https://www.sec.gov/comments/4-698/4-698-a.htm#comments2>)

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| 2. | Timothy Miller, Chief Operating Officer, DASH Financial Technologies LLC, Apr. 11, 2023. |
| 3. | Marcia E. Asquith, Corporate Secretary, EVP, Board and External Relations, Financial Industry Regulatory Authority, Inc., Apr. 11, 2023. |
| 4. | Ellen Greene, Managing Director, Equities & Options Market Structure, and Joseph Corcoran, Managing Director, Associate General Counsel, SIFMA, May 2, 2023. |
| 5. | Brandon Becker, CAT NMS Plan Operating Committee Chair, May 18, 2023. |
| 6. | Marcia E. Asquith, Corporate Secretary, EVP, Board and External Relations, Financial Industry Regulatory Authority, Inc., May 25, 2023. |
| 7. | Ellen Greene, Managing Director, Equities & Options Market Structure and Joseph Corcoran, Managing Director, Associate General Counsel, SIFMA, June 5, 2023. |
| 8. | Brandon Becker, CAT NMS Plan Operating Committee Chair, June 15, 2023. |
| 9. | Kirsten Wegner, Chief Executive Officer, Modern Markets Initiative, July 13, 2023. |
| 10. | Douglas A. Cifu, Chief Executive Officer, Virtu Financial, July 13, 2023. |
| 11. | Timothy Miller, Chief Operating Officer, DASH Financial Technologies LLC, July 13, 2023. |

<u>No.</u>	<u>Description</u>
12.	Ellen Greene, Managing Director, Equities & Options Market Structure, and Joseph P. Corcoran, Managing Director, Associate General Counsel, SIFMA, July 13, 2023.
13.	Joanna Mallers, Secretary, FIA Principal Traders Group, July 14, 2023.
14.	Stephen John Berger, Managing Director, Global Head of Government and Regulatory Policy, Citadel Securities, July 14, 2023.
15.	Brandon Becker, CAT NMS Plan Operating Committee Chair, July 28, 2023.
16.	Joseph Corcoran, Managing Director, Associate General Counsel, SIFMA; Ellen Greene, Managing Director, Equities & Options Market Structure, SIFMA; and Howard Meyerson, Managing Director, Financial Information Forum, July 31, 2023.
17.	Stephen John Berger, Managing Director, Global Head of Government and Regulatory Policy, Citadel Securities, Aug. 22, 2023.
18.	Lindsey Weber Keljo, SIFMA Asset Management Group, Sept. 5, 2023.

Meetings with SEC Officials (<https://www.sec.gov/comments/4-698/4-698-a.htm#meetings1>)

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| 19. | Memorandum from the Office of Commissioner Caroline Crenshaw regarding a March 2, 2023, meeting with representatives of FINRA. |
| 20. | Memorandum from the Office of Commissioner Hester M. Peirce regarding a March 21, 2023, meeting with representatives of CAT LLC. |
| 21. | Memorandum from the Office of Commissioner Mark T. Uyeda regarding an April 17, 2023, meeting with representatives of the Leadership Team of the Consolidated Audit Trail LLC, dated Apr. 18, 2023. |
| 22. | Memorandum from the Office of Commissioner Caroline Crenshaw regarding a May 2, 2023, meeting with representatives of the Consolidated Audit Trail LLC. |

<u>No.</u>	<u>Description</u>
23.	Memorandum from the Office of Commissioner Hester M. Peirce regarding a May 30, 2023, meeting with representatives of SIFMA.
24.	Memorandum from the Division of Trading and Markets regarding a June 1, 2023, meeting with representatives of the Securities Industry and Financial Markets Association, dated June 1, 2023.
25.	Memorandum from the Office of Commissioner Caroline Crenshaw regarding a June 5, 2023, meeting with representatives of SIFMA.
26.	Memorandum from the Office of the Chair regarding a June 28, 2023, meeting with representatives of the CAT Operating Committee, dated July 10, 2023.
27.	Memorandum from the Office of the Chair regarding a July 6, 2023, meeting with representatives of the CAT Operating Committee, dated July 10, 2023.
28.	Memorandum from the Office of the Chair regarding a July 20, 2023, meeting with Modern Markets Initiative, dated July 20, 2023.
29.	Memorandum from the Office of Commissioner Mark T. Uyeda regarding a July 24, 2023, meeting with representatives of Hudson River Trading, LLC, dated July 25, 2023.
30.	Memorandum from the Office of Commissioner Hester M. Peirce regarding a July 25, 2023, meeting with representatives of the Futures Industry Association Principal Traders Group.
31.	Memorandum from the Office of Commissioner Mark T. Uyeda regarding a July 27, 2023, meeting with the Leadership Team of the Consolidated Audit Trail LLC, dated July 27, 2023.
32.	Memorandum from the Office of Commissioner Hester M. Peirce regarding an August 1, 2023, meeting with representatives of the Consolidated Audit Trail Leadership Team.
33.	Memorandum from the Office of Commissioner Mark T. Uyeda regarding an August 28, 2023, meeting with representatives of SIFMA, dated Aug. 28, 2023.

<u>No.</u>	<u>Description</u>
34.	Memorandum from the Office of the Chair regarding an August 31, 2023, meeting with the CAT Operating Committee, dated Aug. 31, 2023.
35.	Memorandum from the Office of the Chair regarding a September 5, 2023, meeting with Citadel Securities, dated Sept. 5, 2023.

Additional Materials

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| 36. | Order Instituting Proceedings to Determine Whether to Approve or Disapprove an Amendment to the National Market System Plan Governing the Consolidated Audit Trail, Securities Exchange Act Release No. 97750 (June 16, 2023), published at 88 Fed. Reg. 41,142 (June 23, 2023). |
| 37. | Order Approving an Amendment to the National Market System Plan Governing the Consolidated Audit Trail, Securities Exchange Act Release No. 98290 (Sept. 6, 2023), published at 88 Fed. Reg. 62,628 (Sept. 12, 2023). |

For the Commission, by its Secretary, pursuant to delegated authority.

/s/ J. Matthew DeLesDernier
J. Matthew DeLesDernier
Deputy Secretary

Dated: November 27, 2023

CERTIFICATE OF SERVICE

I hereby certify that on November 27, 2023, I electronically filed the foregoing Certified List Describing the Record in Proceedings Before the Securities and Exchange Commission using the Court's CM/ECF system, which will send notice to all the parties.

/s/ Daniel E. Matro
Daniel E. Matro
Securities and Exchange Commission
100 F Street, N.E.
Washington, D.C. 20549-9040

Dated: November 27, 2023